



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 30, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103980 regarding Detective Michael Welsome, Tax No. 958168 (DADS No. 2022-27319) and Detective Salvatore Melore, Tax No. 952004 (DADS No. 2022-27320)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Detective Welsome and Detective Melore do not rise to the level of actionable misconduct. Detectives Welsome and Melore arrived at the residence of an individual who was wanted on an active probable cause I-Card.

Prior to being taken into custody, the individual requested permission to retreat into her bedroom in order to change her clothes. Detectives acquiesced; however, for the safety of the officers and others present at the scene, Detective Welsome requested permission from the individual to follow her to the bedroom. The individual granted permission and the Detectives entered the residence. Detective Welsome then followed the individual to her bedroom and, while escorting the individual, quickly glanced into other bedrooms to ensure that no danger was present therein. Detective Welsome did so for his safety and the safety of his partner, Detective Melore.

Thus, based on the consent granted by the individual, the Detectives' entry into the residence was not improper. Furthermore, the cursory glance into spare bedrooms through an *open* door is not an improper search as it was done here for the detectives' safety and nothing more.

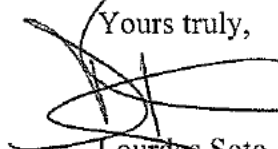
Therefore, Detective Welsome will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of Authority - Entry and Search) and Detective Melore will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of Authority – Entry).

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Website: <http://nyc.gov/nypd>

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto

 Deputy Chief
Commanding Officer
Police Commissioner's Office